24VEC04798 24VEC04798

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-01

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Case Number: 24VEC04798 Hearing Date: July 1, 2026 Dept: U

SUPERIOR COURT OF

THE STATE OF CALIFORNIA

FOR THE COUNTY OF

LOS ANGELES - NORTHWEST DISTRICT

LES FIELDS,

Plaintiff,

vs.

FARMERS INSURANCE COMPANY,

Defendants.

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CASE NO: 24VECV04798

[TENTATIVE] RULING GRANTING DEFENDANT'S MOTION FOR SUMMARY JUDGMENT

Dept. U

8:30 a.m.

July 1, 2026

I. BACKGROUND

This case arises from a dispute as to insurance coverage between Plaintiff Les Fields and Defendant Fire Insurance Exchange. Plaintiff is self-represented.[1]

On September 30, 2024, Plaintiff filed his complaint against Defendant "Farmers Insurance Company," seeking/alleging two (2) claims of declaratory relief.

On December 17, 2024, Plaintiff filed a form amendment to correct Defendant's name from "Farmers Insurance Company" to "Fire Insurance Exchange."

On December 19, 2024, Defendant filed its answer to the complaint.

On March 18, 2026, Defendant filed its motion for summary judgment.

On April 15, 2026, Judge Valerie Salkin entered an order allowing the motion for summary judgment to be heard less than 30 days before trial.

On June 1, 2026, Plaintiff filed his opposition brief.

On June 18, 2026, Defendant filed its reply brief.

II.

LEGAL STANDARD

The purpose of a motion for summary judgment “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843; Code Civ. Proc., § 437c (c). A plaintiff reaches its burden on summary judgment by showing prima facie evidence for each element of its cause of action. Code Civ. Proc, § 437c (p); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519. The burden will then shift to the defendant to show the existence of a triable issue of material fact for at least one element of the cause of action at issue. Ibid.

Courts “liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party.”¿ Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.¿ If all inferences reasonably deducible from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary adjudication.¿ Code Civ. Proc., § 437c (c); Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.

III.

REQUEST FOR JUDICIAL NOTICE AND

RULINGS ON EVIDENCE

Plaintiff requests that the Court take judicial notice of a motion and ruling filed/entered in an earlier Mendocino County Superior Court case. The Court takes judicial notice of said documents, though not necessarily of the facts stated therein. See Evid. Code, § 452.

Defendant objects to evidence submitted by Plaintiff in opposition to the motion. For purposes of the instant motion for summary judgment, Defendant's objections are overruled. See Reid v. Google, Inc. (2010) 50 Cal.4th 512, 531-533 (written evidentiary objections made before hearing avoid waiver regardless of trial court determination as to admissibility of evidence subject to said objections).

IV.
DISCUSSION

a.
Review of Defendant's Submitted Evidence

Defendant submits the following evidence in support of its motion:

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The declaration of Timothy Byrne, Defendant's claims supervisor;

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The declaration of James Lemieux, counsel for Defendant;

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A copy of Plaintiff's Homeowner's Insurance Policy (Exh. 1);

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A copy of a restraining order dated June 4, 2019 (Exh. 2);

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A copy of Plaintiff's request for an order modifying the restraining order dated May 18, 2021 (Exh. 3);

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A copy of an Inventory List dated June 1, 2021 (Exh. 4);

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A copy of an Inventory List dated June 4, 2021 (Exh. 5);

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A copy of a decision after trial dated February 2, 2023 (Exh. 6);

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A copy of an email to a Mendocino County Sheriff dated September 27, 2023 (Exh. 7);

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A copy of Defendant's denial letter and other correspondence between Plaintiff and Defendant (Exhs. 8-12);

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A copy of a letter from Defendant's counsel to Plaintiff (Exh. 13); and

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Excerpts from Plaintiff's deposition transcript (Exhs. 14-15).

Defendant's evidence shows that it issued a homeowner's insurance policy to Plaintiff covering the property at 3651 Hearst Willits Road in Willits, California (the "Ranch"), effective March 1, 2019 through March 1, 2020. The policy included Coverage C for personal property losses. The policy excluded theft committed by an insured or a resident of the insured location and excluded mysterious disappearance. The policy required prompt notice of loss, immediate reporting of any theft to law enforcement, cooperation with an investigation, and suit to be filed within one year after inception of the loss or damage. (SUMF #1-5.)

Plaintiff married Gaelen Martin in 2005 and commenced divorce proceedings in 2008. Around 2012, the Ranch became the couple's primary residence. (SUMF #6-8.)

On May 31, 2019, the Mendocino County Superior Court ordered that all personal property remain at the Ranch. On June 4, 2019, a restraining order required Plaintiff to stay away from Ms. Martin and the Ranch, and Plaintiff moved out. (SUMF #9-11.)

By mid-2021, Plaintiff believed some of his personal property was missing and began creating inventories of missing items. On May 17, 2021, Plaintiff sought an order from the Mendocino Superior Court allowing him to transfer the property to storage. Plaintiff's request for orders indicated that some property may be missing and stated that he intended to submit a policy-limits insurance claim concerning the alleged theft, damage, or liquidation of his property. Plaintiff further represented that an inventory was being compiled and that the value of his missing art could exhaust the policy limits. Inventory lists were prepared and dated June 1, 2021, and June 4, 2021. (SUMF #12-17.)

On February 2, 2023, a divorce court found it unclear whether any photographs or other items were actually missing and declined to assign responsibility for the alleged missing property to Ms. Martin. Plaintiff contends that he was first allowed to reenter the Ranch in January 2023, at which time he says he first learned of the alleged theft. The Ranch was sold in May 2023 as part of the divorce proceedings. (SUMF #18-20.)

On December 12, 2023, Plaintiff first reported a claim to Defendant, alleging that personal property had been stolen in 2019, but that he did not discover the theft until 2023. The claim was referred to Defendant's Special Investigations Unit, and Plaintiff advised the investigator that he believed his ex-wife possessed or sold the property but still believed a robbery had occurred. Ms. Martin denied that any theft occurred and provided documents showing that Plaintiff had contemplated a policy-limits claim in 2021. During a recorded statement on January 31, 2024, Plaintiff stated that his personal property was missing or stolen and that he initially blamed his ex-wife. (SUMF #21-24.)

Because the Ranch had been sold approximately six (6) months before the claim was reported, Defendant was unable to inspect the property, evaluate the premises for signs of forced entry or theft, or examine other storage locations on the property where the allegedly stolen items may have been moved. (SUMF #25.)

On February 20, 2024, Defendant denied Plaintiff's insurance claim on grounds that: (1) Plaintiff had not established a covered theft during the policy period, (2) Plaintiff had not timely reported the matter to law enforcement, and (3) any taking by Ms. Martin would be excluded under the policy. The parties exchanged additional correspondence regarding coverage in March 2024. Defendant issued a second denial letter on April 18, 2024, reaffirming its coverage position and asserting that the claim was barred by policy conditions and based on the policy's 1-year limitations provision. (SUMF #26-28.)

Plaintiff filed this action on September 30, 2024, seeking declaratory relief regarding whether law enforcement had been notified of the alleged break-in and whether insurance coverage exists for the allegedly stolen property. Defendant answered on December 19, 2024, asserting, among other defenses, that Plaintiff's claims are barred by a contractual limitations provision and by Plaintiff's failure to satisfy policy conditions. (SUMF #29-30.)

b.

Review of Plaintiff's Submitted Evidence.

Plaintiff submits the following evidence in opposition to the motion:

- Plaintiff's declaration;
- A copy of a brochure for Misty Mt Ranch for Children with Cancer (Exh. 1);
- A copy of the subject insurance policy (Exh. 2);
- A copy of an email from Defendant to Plaintiff dated December 28, 2023 (Exh. 3);
- The declaration of Ms. Martin, Plaintiff's ex-wife (Exh. 4);
- The declaration of Ashley Gouin, a property caretaker (Exh. 5);
- A copy of an amended proof of loss compilation submitted by Plaintiff (Exh. 6);
- Copies of emails between Plaintiff and Defendant (Exhs. 7-8);
- Copies of Defendant's denial letter and Plaintiff's response thereto (Exhs. 9-10);
- A copy of a website wherein Plaintiff says he discovered Defendant's pattern and practice of mishandling claims (Exh. 11).

Plaintiff's submitted evidence shows that the homeowner's policy remained in force until the Ranch was sold in 2023. Plaintiff disputes Defendant's characterization of certain policy provisions. Plaintiff contends that the policy's theft exclusions and post-loss duties apply only after a loss is determined to be a covered loss. (SUMF #1-5.)

Plaintiff contends that the Ranch did not become his primary residence until 2014. (SUMF #7.)

Plaintiff maintains that throughout 2021, he did not know whether his property was missing, misplaced, relocated, or stolen. Plaintiff says that during that period he was attempting to determine whether a valid insurance claim existed. Plaintiff contends that the June 2021 documents signed by interior decorators were not inventories of missing property but instead statements identifying items they had purchased on his behalf. (SUMF #12-17.)

Plaintiff contends that when he reentered the Ranch in January 2023, he still did not know whether a theft had occurred or whether property had been relocated by Ms. Martin. Plaintiff says it then appeared that someone had attempted to break into a safe on the property. (SUMF #19.)

Plaintiff asserts that: the Ranch was surrendered to a receiver in August 2022, Ms. Martin stopped paying the mortgage, and the property was ultimately sold through foreclosure rather than as part of the divorce proceedings. (SUMF #20.)

Plaintiff contends that his claim became a covered loss only after a November 30, 2023 court ruling referenced testimony concerning a break-in and robbery at the Ranch and that, by January 2024, he no longer believed Ms. Martin was responsible for the loss. (SUMF #21-24.)

Plaintiff disputes Defendant’s assertion of prejudice from the delayed claim, contending that Defendant could still inspect the Ranch because the current owners are willing to permit an inspection. Plaintiff says Defendant never requested an inspection, photographs, or security information, and Defendant did not contact Ms. Martin during its investigation or seek her recorded statement before deposing her in May 2026. (SUMF #23, 25.)

c. This Case was Filed too Long after Plaintiff Knew of an Appreciable Loss

Defendant

moves for summary judgment as to both of Plaintiff's claims for declaratory relief. As alleged in the complaint,

Plaintiff seeks a declaration of rights and responsibilities as to the following two (2) issues: (1) whether Plaintiff or his property caretaker sufficiently notified the Sheriffs Department of a break-in and robbery as required in the insurance policy; and (2) whether the policy covers Plaintiff's stolen property. (See Complaint, pp. 1:17-26, 8:10-19.)

Defendant argues that the policy's limitations period expired before Plaintiff filed this case. Specifically, the policy includes the following provision setting forth a 1-year limitations period:

"No suit or other action can be brought against us, our agents or our representatives unless there has been full compliance with all the terms of this policy, including submission to requested examinations under oath. Suit on or arising out of the Section I - Property Coverage of this policy must be brought within one year after inception of the loss or damage." (Defendant's Exhibits, p. 133, § I (13).)

The policy also includes a section titled "Duties After Loss," wherein an insured is obligated to "give prompt written notice to us or our agent without unnecessary delay," and "[i]n case of theft, you must also immediately notify the police." (Exhibits, p. 132; Policy, § I (3)(a).)

The 1-year contractual suit limitation operates like a statute of limitations. See Basurco v. 21st Century Insurance Co. (2003) 108 Cal.App.4th 110, 118. Such a limitations period begins to run at the "inception of the loss," meaning the "point in time when appreciable damage occurs and is or should be known to the insured, such that a reasonable insured would be aware that his notification duty under the policy has been triggered." Prudential-LMI Com. Insurance v. Superior Court (1990) 51 Cal.3d 674, 699 (Prudential-LMI).

An insured need not know the full extent of the damage for the limitations period to start running; an awareness of some appreciable damage is sufficient. Magnolia Square Homeowners Ass'n v. Safeco

Ins. Co. (1990) 221 Cal.App.3d 1049, 1059-1060 (Magnolia Square) (although insured "may not have known the full extent of the structural problem, it did realize, by virtue of allegations such as missing or inadequate shear walls … that there were some structural defects. Given this realization … [the insured] should have conducted further investigation to determine the scope of the structural problem… Once [the insured] knew that certain building components were missing or inadequate, it should have acted with diligence to determine the extent of the structural deficiencies. To conclude otherwise would permit an insured to submit claims in a piecemeal manner").

Plaintiff is on record as having represented to a Mendocino County Superior Court that some of his property at the Ranch was missing as of May 17, 2021, when he filed a verified request for orders in that Court. In his request for orders, Plaintiff stated as follows:

"[Plaintiff] agrees that a determination of 'missing property' may need to be declared. Accordingly, [the Fields Children's Trust ("FCT")] and [Plaintiff] intend to file a claim with [Defendant] relative to [Ms. Martin's] theft, damage or liquidation of … [Plaintiff's] property during the past two years of [Ms. Martin's] sole custody of said property. It will likely be a policy limits claim. […] [Defendant] will be supplied a list of property purchased by interior decorators on behalf of FCT over the years. It will identify items and values relative to the claim. The list is being compiled now. My personal knowledge of the financial basis for the property and my personal knowledge of the value of missing art causes me to believe the [] claim will reach policy limits. […] The value of the insured's property at the ranch, or other locations, far exceeds the one million dollar limit attendant to the … policy. Therefore an inventory and audit will be required by the Internal Revenue Service (IRS) pursuant to an unrecovered theft deduction." (Defendant's Exhibits, pp. 81-82.)

On June 1, 2021, Tracy Hunt, Plaintiff's interior decorator, produced a list of furniture, art, and appliances purchased by her for the Ranch at Plaintiff's direction. (Defendant's Exhibits, pp. 87-88.) On June 4, 2021, Jacquie Orphanopoulos, another interior decorator, produced a second list of items purchased by her for the Ranch at Plaintiff's direction. (Defendant's Exhibits, p. 90.)

On February 2, 2023, the Mendocino County Superior Court issued a decision after trial in the divorce proceeding, wherein the Court noted that it “cannot assign responsibility for any of the alleged missing items to [Ms. Martin]. It is unclear why or if they are missing. … [T]he entire contents of the house, including the safe, and confirmed to [Plaintiff] as separate property.” (Defendant’s Exhibits, p. 98.) The Court went on to reference missing photographs, clothes, wall clocks, and a pipe collection. (Defendant’s Exhibits, p. 99.)

On September 27, 2023, Plaintiff emailed “,” stating:

“I am notifying the Sheriff department of the theft of furniture, art and personal belongings which has recently been discovered. This theft occurred at 3651 Hearst Willits Road, Willits Ca 95490 (Ranch). […] Art work, furniture and items from all my family houses were stored in the ample storage facilities at the Ranch. In 2019 I was removed from Ranch during a long and complex divorce proceeding. Sixty days after my removal, my ex wife, against court orders, began moving furniture and valuables to different locations. No inventory was taken and there is no listing of what property was moved to which location. After 4 years of proceedings I have finally been able to gather my possessions. The attached list represents the items that remain missing.” (Defendant’s Exhibits, p. 106.)

On December 12, 2023, Plaintiff first reported a claim to Defendant. On January 13, 2024, Plaintiff sent Defendant a proof of loss form with supporting documentation of items purportedly missing and/or stolen. That documentation includes, among other things, the letters from Ms. Hunt and Ms. Orphanopoulos documenting items purchased for the Ranch by Plaintiff. Said documentation also includes Plaintiff’s email to “.” (Defendant’s Exhibits, pp. 108-128.)

Plaintiff was plainly on notice of allegedly stolen or missing items at the Ranch as early as May 17, 2021, when he represented to the Mendocino County Superior Court in his divorce proceeding that some property was missing. At the time, Plaintiff attributed the loss to theft by Ms. Martin. Plaintiff even stated his intention to assert an insurance claim with Defendant based on that alleged loss. In short, Plaintiff not only admitted that he was aware of a loss of property, but that he understood that any such loss would constitute an insurance claim that he would need to report to Defendant.

Under Plaintiff's policy and controlling California law, the 1-year limitations period began to run at that time because an appreciable loss was known to Plaintiff and his notification obligations had been triggered. Therefore, the contractual deadline to file suit expired on or around May 17, 2022, one (1) year after the inception of the loss. Plaintiff failed to report the loss to the Mendocino County Sheriff until September 27, 2023. Plaintiff failed to file an insurance claim until December 12, 2023. Plaintiff did not file this case until September 30, 2024, well beyond the expiration of the 1-year limitations period.

Plaintiff argues the Court should find otherwise because any robbery occurred during a period when he was restrained from accessing the Ranch during his divorce. Plaintiff asserts that Ms. Martin failed to notify him of thefts during that period. This argument fails to account for the fact that Plaintiff is on record as having been aware of allegedly missing and stolen property as early as May 17, 2021.

Plaintiff maintains that throughout 2021, he did not know whether his property was missing, misplaced, relocated, or stolen. Plaintiff says that during that period he was attempting to determine whether a valid insurance claim existed. Plaintiff contends that the June 2021 documents signed by interior decorators were not inventories of missing property but instead statements identifying items they had purchased on his behalf. The Court disagrees with Plaintiff that the factual record in this case can be fairly characterized this way.

When Plaintiff made certain representations to the Mendocino Superior Court on May 17, 2021, he specifically stated that he "intend[ed] to file a claim with [Defendant] relative to [Ms. Martin's] theft, damage or liquidation of … [Plaintiff's] property," that such a claim "will likely be a policy limits claim," and that Plaintiff would produce "a list of property purchased by interior decorators on behalf of FCT over the years [to] identify items and values relative to the claim." Plaintiff stated, "The list is being compiled now." (Defendant's Exhibits, pp. 81-82.)

In June 2021, and at Plaintiff's direction, Ms. Hunt and Ms. Orphanopoulos produced lists of property they purchased for the Ranch. These same lists of property compiled by Ms. Hunt and Ms. Orphanopoulos are attached to Plaintiff's claim of loss submitted to Defendant. The only reasonable inference is that the lists compiled by Ms. Hunt and Ms. Orphanopoulos are the same lists referred to in Plaintiff's May 17, 2021 filing in Mendocino Superior Court wherein he stated that he would create lists of property believed to be stolen by Ms. Martin. Plainly, Plaintiff was on notice that the subject property was or might have been missing as early as May 17, 2021, thus triggering Plaintiff's obligation to notify Defendant and/or to conduct an investigation to determine whether he needed to file a claim. See Magnolia Square, supra, 221 Cal.App.3d at pp. 1059-1060 (insured need not know full extent of damage for limitations period to start running; an awareness of some appreciable damage is sufficient).

Plaintiff argues his claim is rescued by equitable tolling, citing the case Prudential-LMI, supra, 51 Cal.3d 674. In Prudential-LMI, the Supreme Court held that the contractual "limitation period should be equitably tolled from the time the insured files a timely notice, pursuant to policy notice provisions, to the time the insurer formally denies the claim in writing." Prudential-LMI, at p. 678.

Equitable tolling does not rescue Plaintiff's claim because the claim was already untimely when Plaintiff first reported it to Defendant on December 12, 2023. The parties' submitted evidence indicates Plaintiff was on notice as to the likely existence of a claim as early as May 17, 2021. Plaintiff did not first file a claim until December 2023, more than two (2) years later. Because the 1-year limitations period had already expired, there is nothing to equitably toll. Plaintiff is incorrect that a "written notice of claim denial is required to end the tolling of the statute of limitations" (Opposition, p. 7:1-2) where, as here, the claim was initially submitted after the limitations period had already run out.

In sum, there is no triable fact issue as to whether Plaintiff is entitled to payment on the insurance claim that is the subject of this action. Plaintiff was untimely in reporting the subject claim to Defendant in violation of the policy’s 1-year limitation provision. Accordingly, the Court declines to issue the requested declaratory order and instead issues a declaratory order that the subject theft claim is not covered by the subject insurance policy as it is time-barred.

Because the Court has reached its determination based on Defendant’s position that the claim is time-barred, the Court need not evaluate the parties’ other arguments regarding whether Plaintiff sufficiently notified the sheriff’s office; whether Defendant was prejudiced by Plaintiff’s delay in reporting the loss; and whether the property was, in fact, taken by Ms. Martin or by someone else.

The motion will be granted.

V.
CONCLUSION

Defendant Fire Insurance Exchange’s motion for summary judgment is GRANTED.

Defendant Fire Insurance Exchange is ORDERED to give notice.

DATED: July 1, 2026

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Judge
of the Superior Court

[1] See¿Harding v. Collazo¿(1986) 177 Cal.App.3d 1044, 1056 (self-represented litigants held

to same standards applied to licensed attorneys); see also¿Monastero v. Los Angeles Transit Co.¿(1955) 131 Cal.App.2d 156, 160-161 (“litigant is permitted to present his own case, but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts”).